



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 6, 2025

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202310574 (Incident Date: November 8, 2023) regarding Police Officer Jose Rivera, Tax No. 967299 (PODS No. C-033762)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202310574, pertaining to Police Officer Jose Rivera, and has determined that disciplinary action is not warranted in connection with the substantiated allegations.

In this matter, Police Officer Rivera is alleged to have improperly threatened an individual with force. During this exchange, the individual, who already was agitated towards Police Officer Rivera for the stop, exclaimed, "I wish I run into you one day. In the boxing gym so we can box." As Police Officer Rivera was walking away, he turned and responded, "I'm here now." It should be noted that the individual never complained of feeling threatened by Police Officer Rivera's comment. In fact, it was the individual who escalated this encounter with his statements, as Police Officer Rivera had already turned away to proceed towards his police vehicle. The response by Police Officer Rivera cannot reasonably be perceived as a threat of force, therefore, the statement does not rise to the level of actionable misconduct.

Given the totality of the circumstances, the Police Commissioner directs that no disciplinary action be imposed against Police Officer Rivera for the substantiated allegations.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

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